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Attorneys for Defendants
SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA – SAN FRANCISCO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation, Defendants.	Case No. 3:26-cv-07504-LJC **DEFENDANTS SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S INITIAL RULE 26 DISCLOSURE**

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

Defendants SHANNON SMITH and HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION ("defendants") hereby submit the following initial disclosure pursuant to Federal Rule of Civil Procedure 26(a)(1)(A). This initial disclosure is based upon information presently known and reasonably available to defendants, which defendants reasonably believe they may use in support of their claims and/or defenses. Defendants reserve the right to supplement this initial disclosure as continuing investigation and discovery may cause defendants to amend and/or supplement this initial disclosure, which may include identifying

additional potential witnesses, documents, and other information not presently known at this time.

By providing this disclosure, defendants do not represent that they are identifying every document, tangible thing, or witness possibly relevant to this action. In making this disclosure, defendants in no way waive their right to object to any discovery request or proceeding involving or relating to the subject matter of this disclosure on any grounds, including competency, privilege, relevance and materiality, hearsay, undue burden, confidentiality, and any other appropriate objection which may be made throughout this proceeding. This disclosure is not an admission by defendants regarding any matter.

Each and every disclosure set forth below is subject to the qualifications and limitations set forth above.

A. WITNESSES

Defendants hereby disclose the names, addresses, and telephone numbers (if known) of the following individuals, likely to have discoverable information that defendants may use to support their claims or defenses and the anticipated subject of the information known by the witnesses. Defendants reserve the right to amend their disclosure to add additional witnesses as further information is obtained in this action. All individuals listed below that are employed by, or were previously employed by, defendants may be contacted only through defendants' counsel.

1. Shannon Smith, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Smith may have information regarding, but not limited to, and may testify as to her role as Chief Executive Officer at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, Ms. Smith's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

2. Katie Palacios, LCSW, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Palacios may have information regarding, but not limited to, and may testify as to her role as Clinical Director at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and

procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

3. Kristine Hansen, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Hansen may have information regarding, but not limited to, and may testify as to her role as Director of Quality and Compliance at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

4. Cristina Loree, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Loree may have information regarding, but not limited to, and may testify as to her role as Executive Director of Training and Development at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

5. Bernadette Marie Tassone, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Tassone may have information regarding, but not limited to, and may testify as to her role as Clinician II at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

6. Pamela Akins, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Akins may have information regarding, but not limited to, and may testify as to her role as Clinician II at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged

by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

7. Carla Marie Boatner, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Boatner may have information regarding, but not limited to, and may testify as to her role as Assessor at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

8. Adelyn Helfand, 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Ms. Helfand may have information regarding, but not limited to, and may testify as to her role as Clinical Coordinator at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

9. Carrie Shinske, Psy.D., 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Dr. Shinske may have information regarding, but not limited to, and may testify as to her role as Executive Director of Clinical Operations at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

10. Drew Kingston, Ph.D., 5403 N. Pershing Ave., Suite 200, Stockton, CA 95207, **available only through counsel for defendants**. It is anticipated that Dr. Kingston may have information regarding, but not limited to, and may testify as to his role as Chief Clinical Officer and Director of Research at HOPE PROGRAM, as well as interactions with plaintiff, if any, HOPE

PROGRAM'S policies and procedures, the incidents alleged by plaintiff in the complaint, HOPE PROGRAM'S response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

11. Long Moua, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Moua may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by plaintiff in the complaint, Mr. Moua's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

12. Glenn Unea, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Unea may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by plaintiff in the complaint, Mr. Unea's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

13. David Arestad, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Arestad may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by plaintiff in the complaint, Mr. Arestad's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

14. Derrick Andrew, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Andrew may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by plaintiff in the complaint, Mr. Andrew's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

15. Gary Noguchi, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Noguchi may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by

plaintiff in the complaint, Mr. Noguchi's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

16. Madri Sherman, 612 Carlton Avenue, Stockton, CA 95203; (209) 948-7652. It is anticipated that Mr. Sherman may have information regarding, but not limited to, and may testify as to his role as a Parole Official, as well as interactions with plaintiff, if any, the incidents alleged by plaintiff in the complaint, Mr. Sherman's response to the incidents alleged by plaintiff, and other relevant topics regarding or related to the circumstances and allegations surrounding the instant action.

17. All persons identified in plaintiff's disclosures.

18. In addition to the foregoing, defendants reserve the right to call any witness at trial that was disclosed by the parties in their respective disclosures. Investigation and discovery are continuing. Defendants reserve their right to supplement their disclosures throughout this litigation.

B. DOCUMENTS

Defendants reserve the right to respond further or to supplement the identification of documents subject to disclosure under Rule 26(a)(1)(A)(ii). Pursuant to that rule, defendants will produce all documents that they may use to support their claims or defenses in this case. The parties have filed with the Court a proposed stipulated protective order governing the use and disclosure of confidential information in this action. Upon the Court's entry of a protective order, defendants will produce all documents subject to Rule 26(a)(1)(A)(ii)'s disclosure requirement.

C. COMPUTATION OF DAMAGES

Defendants do not currently claim any damages in relation to this action.

D. INSURANCE

Upon entry of a protective order, defendants will produce a copy of the applicable insurance policy.

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Dated: October 15, 2026

Respectfully submitted,

SIMS, LAWRENCE & BROGHAMMER

By: _____

CYNTHIA G. LAWRENCE
BLAZE VAN DINE
ERIC T. MARTINEZ
Attorneys for Defendants
SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)